ALTA / ACSM LAND TITLE SURVEY
FOR
MAGIC RANCH– PARCEL F

LEGAL DESCRIPTION

A PARCEL OF LAND LOCATED IN THE EAST HALF OF SECTION 11 TOWNSHIP 4 SOUTH, RANGE 8 EAST OF THE GILA AND SALT RIVER BASE AND MERIDIAN, PINAL COUNTY, ARIZONA, DESCRIBED AS FOLLOWS:

COMMENCING AT THE SOUTHEAST CORNER OF SECTION 11 SAID CORNER BEING A GLO BRASS CAP, SAID CORNER BEARS SOUTH 00°06'02" EAST, A DISTANCE OF 2657.06 FEET FROM THE EAST QUARTER CORNER OF SECTION 11, SAID EAST QUARTER BEING AN ALUMINUM CAP;

THENCE NORTH 89°35'39" WEST, A DISTANCE OF 2648.66 FEET TO THE SOUTH QUARTER CORNER OF SECTION 11 SAID CORNER BEING A GLO BRASS CAP;
THENCE NORTH 00°01'09" EAST ALONG THE MID–SECTION LINE OF SECTION 11 A DISTANCE OF 402.68 FEET TO THE POINT OF BEGINNING:
THENCE NORTH 00°01'09" EAST ALONG SAID MID–SECTION LINE, A DISTANCE OF 3568.47 FEET TO A POINT, SAID POINT BEARS SOUTH 00°01'09" WEST A DISTANCE OF 1323.84 FEET FROM THE NORTH QUARTER CORNER OF SECTION 11:
THENCE NORTH 89°59'07" EAST, A DISTANCE OF 1283.19 FEET; THENCE SOUTH 00°00'53" EAST, A DISTANCE OF 261.62 FEET;
THENCE SOUTHERLY, A DISTANCE OF 111.08 FEET ALONG A CURVE TO THE RIGHT HAVING A RADIUS OF 175.00 FEET AND A CENTRAL ANGLE OF 36°22'08";
THENCE SOUTH 36°21'15" WEST, A DISTANCE OF 717.82 FEET;
THENCE SOUTHWESTERLY, A DISTANCE OF 49.35 FEET ALONG A CURVE TO THE LEFT HAVING A RADIUS OF 275.00 FEET AND A CENTRAL ANGLE OF 10°16'52"
THENCE SOUTH 26°04'23" WEST, A DISTANCE OF 153.29 FEET;
THENCE SOUTHWESTERLY, A DISTANCE OF 25.82 FEET ALONG A CURVE TO THE RIGHT HAVING A RADIUS OF 275.00 FEET AND A CENTRAL ANGLE OF 05°22'43"
THENCE SOUTH 31°27'06" WEST, A DISTANCE OF 78.72 FEET;
THENCE WESTERLY, A DISTANCE OF 37.33 FEET ALONG A NON TANGENT CURVE TO THE RIGHT OF WHICH THE RADIUS POINT LIES NORTH 58°32'53" WEST A RADIUS OF 25.00 FEET, AND HAVING A CENTRAL ANGLE OF 85°33'14"
THENCE SOUTH 35°50'32" WEST. A DISTANCE OF 50.00 FEET;
THENCE SOUTH 62°59'30" EAST, A DISTANCE OF 184.34 FEET;
THENCE SOUTH 31°15'54" WEST. A DISTANCE OF 988.52 FEET;
THENCE SOUTH 00°06'37" EAST, A DISTANCE OF 972.43 FEET;
THENCE SOUTHEASTERLY, A DISTANCE OF 255.06 FEET ALONG A NON TANGENT CURVE TO THE LEFT OF WHICH THE RADIUS POINT LIES NORTH 89°53'34" EAST A RADIUS OF 150.00 FEET, AND HAVING A CENTRAL ANGLE OF 97°25'33".
THENCE SOUTH 11°21'18" EAST, A DISTANCE OF 26.24 FEET; THENCE SOUTH 45°55'54" WEST, A DISTANCE OF 16.29 FEET;
THENCE SOUTHWESTERLY, A DISTANCE OF 134.41 FEET ALONG A NON TANGENT CURVE TO THE LEFT OF WHICH THE RADIUS POINT LIES SOUTH 17°59'14" EAST A RADIUS OF 825.00 FEET, AND HAVING A CENTRAL ANGLE OF 09°20'06".
THENCE SOUTH 62°40'41" WEST, A DISTANCE OF 130.93 FEET;
THENCE WESTERLY, A DISTANCE OF 39.27 FEET ALONG A CURVE TO THE RIGHT HAVING A RADIUS OF 25.00 FEET AND A CENTRAL ANGLE OF 90°00'00":
THENCE SOUTH 62°40'41" WEST. A DISTANCE OF 80.00 FEET;
THENCE SOUTH 27°19'19" EAST. A DISTANCE OF 123.93 FEET;
THENCE SOUTHEASTERLY, A DISTANCE OF 147.22 FEET ALONG A CURVE TO THE LEFT HAVING A RADIUS OF 430.00 FEET AND A CENTRAL ANGLE OF 19°37'01";
THENCE SOUTHERLY, A DISTANCE OF 42.91 FEET ALONG A REVERSE CURVE TO THE RIGHT HAVING A RADIUS OF 25.00 FEET AND A CENTRAL ANGLE OF 98°21'07";
THENCE SOUTH 51°24'47" WEST, A DISTANCE OF 41.12 FEET
THENCE WESTERLY, A DISTANCE OF 39.27 FEET ALONG A CURVE TO THE RIGHT HAVING A RADIUS OF 25.00 FEET AND A CENTRAL ANGLE OF 90°00'00";
THENCE NORTH 38°35'13" WEST, A DISTANCE OF 261.92 FEET TO THE POINT OF BEGINNING.
CONTAINING 2,191,436.18 SQUARE FEET OR 50.309 ACRES, MORE OR LESS.

SCHEDULE "B"

1. SECOND INSTALLMENT OF 2004 TAXES, A LIEN, PAYABLE ON OR BEFORE MARCH 1, 2005, AND DELINQUENT MAY 1, 2005.

2. ANY CHARGE UPON SAID LAND BY REASON OF ITS INCLUSION IN CENTRAL ARIZONA WATER CONSERVATION DISTRICT.

③ AN EASEMENT FOR PIPELINE AND FACILITIES AND INCIDENTAL PURPOSES, RECORDED AS DOCKET 142, PAGE 352 OF OFFICIAL RECORDS.

4. ALL MATTERS AS SET FORTH IN AGREEMENT PERTAINING TO THE INSTALLATION OF GATE VALVE FOR PIPELINE, RECORDED APRIL 9,1956 AS DOCKET 149, PAGE 488 OF OFFICIAL RECORDS.

5. A RESOLUTION BY THE BOARD OF SUPERVISORS OF PINAL COUNTY, ARIZONA, RECORDED FEBRUARY 21, 1964 IN DOCKET 375, PAGE 572, PURPORTING TO ESTABLISH A COUNTY ROADWAY.

⑥ AN EASEMENT FOR RAILROAD AND INCIDENTAL PURPOSES, RECORDED AS DOCKET 388, PAGE 55 OF OFFICIAL RECORDS.

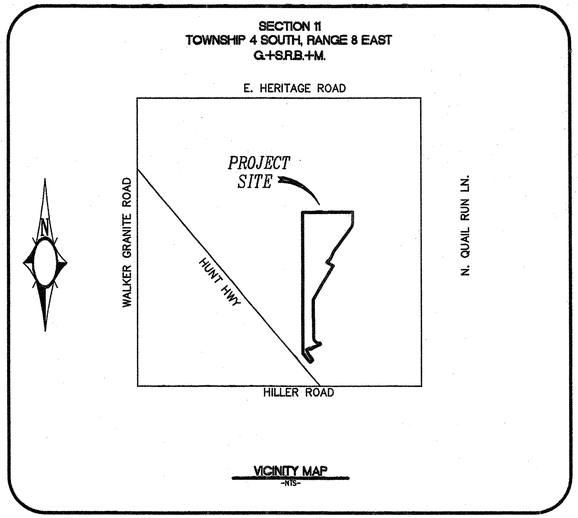
7. ALL MATTERS AS SET FORTH IN "PHASED PROTECTED DEVELOPMENT RIGHTS PLAN AGREEMENT" BY AND BETWEEN MAGIC RANCH AND PINAL COUNTY, RECORDED JANUARY 12, 1999 AS FEE NO. 1999–001383 OF OFFICIAL RECORDS.

8. ALL MATTERS CONTAINED IN THAT CERTAIN CABLE TELEVISION SERVICE AGREEMENT AND EASEMENT FOR THE PURPOSE OF CONSTRUCTING, OPERATING AND MAINTAINING CABLE TELEVISION SERVICES, RECORDED IN MAY 2, 2003 AS FEE NO. 2003–029073 OF OFFICIAL RECORDS.

⑨ AN EASEMENT FOR UNDERGROUND NATURAL GAS SUPPLY PIPELINE AND INCIDENTAL PURPOSES, RECORDED AS AUGUST 6, 2003 AS FEE NO. 2003–054292 OF OFFICIAL RECORDS.

10. ALL MATTERS AS SET FORTH IN "EASEMENT AGREEMENT" BY AND BETWEEN GENERAL HUNT PROPERTIES, INC.. AN ARIZONA CORPORATION AND D.R. HORTON, JNC.–DIETZ–CRANE, A DELAWARE CORPORATION, RECORDED OCTOBER 15. 2001 AS FEE NO. 2001–047277 OF OFFICIAL RECORDS.

11. TAXES FOR THE FULL YEAR OF 2005. (THE FIRST HALF IS DUE OCTOBER 1. 2005 AND IS DELINQUENT NOVEMBER 1. 2005. THE SECOND HALF IS DUE MARCH 1,2006 AND IS DELINQUENT MAY 1, 2006.)



VICINITY MAP
-NTS-

BASIS OF BEARING

THE BASIS OF BEARING IS THE SOUTH LINE OF THE SOUTHEAST QUARTER OF SECTION 11, TOWNSHIP 4 SOUTH, RANGE 11 EAST, OF THE GILA AND SALT RIVER MERIDIAN, PINAL COUNTY, ARIZONA, HAVING A BEARING OF NORTH 89°35'39" WEST.

AREA

50.51 ACRES OR 2,191,437.21 SQUARE FEET MORE OR LESS

PARKING

VACANT LAND

SURVEYOR'S COMMENTS

1. THE CERTIFYING SURVEYOR HAS NOT MADE AN INDEPENDENT TITLE SEARCH AND HAS RELIED SOLELY ON SUPPLIED DOCUMENTATION SHOWN IN A TITLE REPORT PROVIDED BY FIRST AMERICAN TITLE INSURANCE COMPANY ORDER NO. 242–4223404 DATED JANUARY 19, 2005 AND SPECIFICALLY DISCLAIMS ANY ITEMS NOT SHOWN WHICH MAY OR MAY NOT BE OF PUBLIC RECORD THAT MIGHT AFFECT THE PROPERTY SHOWN ON THIS SURVEY.

2. ADDRESS: SOUTHWEST CORNER OF HUNT HIGHWAY & MAGMA RAILROAD

3. TOTAL AREA OF SUBJECT PROPERTY: 50.31 ACRES, MORE OR LESS.

4. ASSESSOR'S PARCEL NUMBERS: A.P.N.# 200–24–003F0, 200–24–039C5 AND 200–24–064A7

5. SUBJECT PROPERTY HAS NO OBSERVABLE EVIDENCE OF RECENT CONSTRUCTION

6. SUBJECT PROPERTY HAS NO OBSERVABLE EVIDENCE OF BEING USED AS A SOLID WASTE DEPOSITORY, DUMP, OR LANDFILL,

7. SUBJECT PROPERTY HAS NO OBSERVABLE EVIDENCE OF CEMETERIES OR BURIAL GROUNDS.

FLOOD INSURANCE DATA

FLOOD ZONE DESIGNATION "C" PER F.E.M.A FLOOD INSURANCE RATE MAP, COMMUNITY PANEL NUMBER 040077C0500C. DATED AUGUST 15, 1983.

ZONE "C" – AREAS OF MINIMAL FLOODING

(THE ABOVE STATEMENT IS FOR INFORMATION ONLY AND THE SURVEYOR ASSUMES NO LIABILITY FOR THE CORRECTNESS OF THE CITED MAP OR THE LOCATION OF THE FLOOD ZONE BOUNDARY. IN ADDITION, THE ABOVE STATEMENT DOES NOT REPRESENT THE SURVEYOR'S OPINION OF THE PROBABILITY OF FLOODING.)

SETBACK, HEIGHT & BULK RESTRICTIONS

ZONE CR–3	PAD
FRONT SETBACK	10 FEET
SIDE SETBACK	5 FEET
REAR SETBACK	20 FEET
STREET SIDE SETBACK	10 FEET
BUILDING HEIGHT	30 FEET

SURVEYOR'S CERTIFICATE

TO ROYCE HOMES–PHOENIX, L.L.C., AN ARIZONA LIMITED LIABILITY COMPANY, GENERAL HUNT PROPERTIES, INC. AN ARIZONA COPORATION, FIRST AMERICAN TITLE INSURANCE COMPANY AND RBC CENTURA BANK;

I HEREBY CERTIFY THAT ON THE 8TH DAY OF MARCH, 2005 THE FOLLOWING IS TRUE:
1. I AM A REGISTERED PUBLIC LAND SURVEYOR AND THIS SURVEY WAS PREPARED FROM ACTUAL ON–THE–GROUND SURVEY OF THE REAL PROPERTY SHOWN HEREON CONDUCTED BY ME OR MY SUPERVISION.
2. THIS SURVEY CORRECTLY SHOWS (I) THE BOUNDARIES OF THE SUBJECT PROPERTY AND THEIR DIMENSIONS AND DIRECTION, AND THE ARES OF THE SUBJECT PROPERTY; (II) THE LOT AND BLOCK DESIGNATION OF ANY RECORDED SUBDIVISION OR ADDITION IN WHICH THE SUBJECT PROPERTY IS LOCATED AND THE RECORDING INFORMATION WITH RESPECT THERETO (III) THE SIZE, LOCATION AND TYPE OF ALL BUILDINGS AND IMPROVEMENTS LOCATED THEREON (IF ANY) AND THE DISTANCE FROM ANY BUILDINGS OR IMPROVEMENTS TO THE NEAREST FACING PROPERTY LINE; (iv) ALL BUILDING OR IMPROVEMENT SETBACK REQUIREMENTS (IF ANY); (v) THE LOCATION OF ALL EASEMENTS, RIGHTS OF WAY AND ANY OTHER MATTERS OF RECORD OR OF WHICH I HAVE KNOWLEDGE WHICH AFFECTS THE SUBJECT PROPERTY INCLUDING ANY APPURTENANT EASEMENTS; (vi) THE LOCATION AND DIMENSIONS OF ALL DRIVES, PARKING AREAS, ALLEYS, STREETS AND ROADS ON THE SUBJECT PROPERTY (IF ANY), INCLUDING THE NUMBER OF PARKING SPACES PROVIDED THEREBY; (vii) ALL ABUTTING DEDICATED PUBLIC STREETS PROVIDING ACCESS TO THE SUBJECT PROPERTY TOGETHER WITH THE WIDTH AND NAME THEREOF; (viii) THE DISTANCE FROM THE NEAREST INTERSECTING STREETS OR ROADS; (ix) THE LOCATION, SIZE AND TYPE OF ALL MONUMENTS REFFERED TO HEREIN; (x) ALL EASEMENTS, ENCHROACHMENTS AND OTHER MATTERS REFLECTED ON THE (TITLE COMMITMENT) DATED JANUARY 19, 2005, ISSUED BY FIRST AMERICAN TITLE UNDER ITS (FILE) NO. 242–4423404; AND (xi) ALL OTHER SIGNIFICANT ITEMS ON THE SUBJECT PROPERTY INCLUDING BUT NOT LIMITED TO RIVERS, CREEKS, STREAMS AND LAKES.
3. EXCEPT AS SHOWN ON THE SURVEY, THERE ARE NO (I) ENCHROACHMENTS ON THE SUBJECT PROPERTY BY IMPROVEMENTS LOCATED ON THE ADJACENT PROPERTY OR BY STREETS OR ALLEYS; (ii) PROTRUSIONS BY IMPROVEMENTS LOCATED ON THE SUBJECT PROPERTY ONTO ADJACENT PROPERTY OR STREETS OR ALLEYS; (iii) VISIBLE OR APPARENT EASEMENTS OR RIGHTS–OF–WAY; (iv) PARTY WALLS; OR (v) VISIBLE DESCREPANCIES, CONFLICTS OR BOUNDARY LINE DISPUTES.
4. THE SUBJECT PROPERTY HAS ADEQUATE INGRESS AND EGRESS PROVIDED BY PAVED AND DEDICATED PUBLIC STREETS MAINTAINED BY THE APPROPRIATE CITY OR COUNTY GOVERMENTAL AUTHORITY INCLUDING ACCESS VIA HUNT HIGHWAY.
5. EXCEPT AS SPECIFICALLY NOTED ON THE SURVEY, NO PART OF THE SUBJECT PROPERTY LIES WITHIN ANY AREA DESIGNATED AS A "FLOOD PRONE AREA" OR 100–YEAR FLOOD PLAIN BY THE FEDERAL EMERGENCY MANAGEMENT AGENCY, THE UNITED STATES ARMY CORPS OF ENGINEERS, THE STATE, THE COUNTY OR CITY IN WHICH THE SUBJECT PROPERTY IS LOCATED OR ANY OTHER GOVERNMENTAL ADENCY OR AUTHORITY HAVING JURISDICTION OVER THE SUBJECT PROPERTY NOR IS ANY PORTION OF THE PROPERTY LOCATED WITHIN ANY LAKE OR ANY CREEK, STREAM, RIVER OR OTHER WATERCOURSE REQUIRED TO BE UNDISTURBED BY AN APPROPRIATE GOVERNMENTAL AGENCY OR AUTHORITY.
6. THE UNDERSIGNED UNDERSTANDS AND AGREES THAT THE PARTIES TO WHOM THIS CERTIFICATION IS ADDESSED WILL BE RELYING UPON THIS CERTIFICATION IN PURCHASING THE PROPERTY, BORROWING AND LENDING MONEY TO BE SECURED BY THE PROPERTY AND ISSUING TITLE INSURANCE WITH RESPECT TO THE SUBJECT PROPERTY AND THE SURVEY HAS BEEN PREPARED BY THEIR RESPECTIVE BENEFITS IN ANTICIPATION OF THEIR RELIANCE THEREON.
THE "SURVEY" AS REFERRED TO HEREIN SHALL MEAN AND SHALL BE LIMITED TO THE FOLLOWING:
A. THE ALTA FOR THE OASIS AT MAGIC RANCH, PARCEL F

MARK A. BYRD — 3/10/05
MARK A. BYRD — DATE
REGISTERED LAND SURVEYOR
REGISTRATION NO. 31016

REGISTERED LAND SURVEYOR — CERTIFICATE NO. 31016 — MARK A. BYRD — Date Signed 3/10/05 — ARIZONA U.S.A.

REVISIONS			
No.	Date	CHKD	APPD

DESIGNED: ___
DRAWN: MHR
CHECKED: MAB
JOB NO: 195004
SCALE: 1"=80'
BORIZ:
DATE 2–10–05

Carter :: Burgess
3003 North Central Ave., Suite 1700
Phoenix, Arizona 85012
(602) 263–5309 Fax (602) 263–8373

PROJECT: MAGIC RANCH – PARCEL F
DESCRIPTION: ALTA/ACSM LAND TITLE SURVEY
SHEET 1
1 OF 3

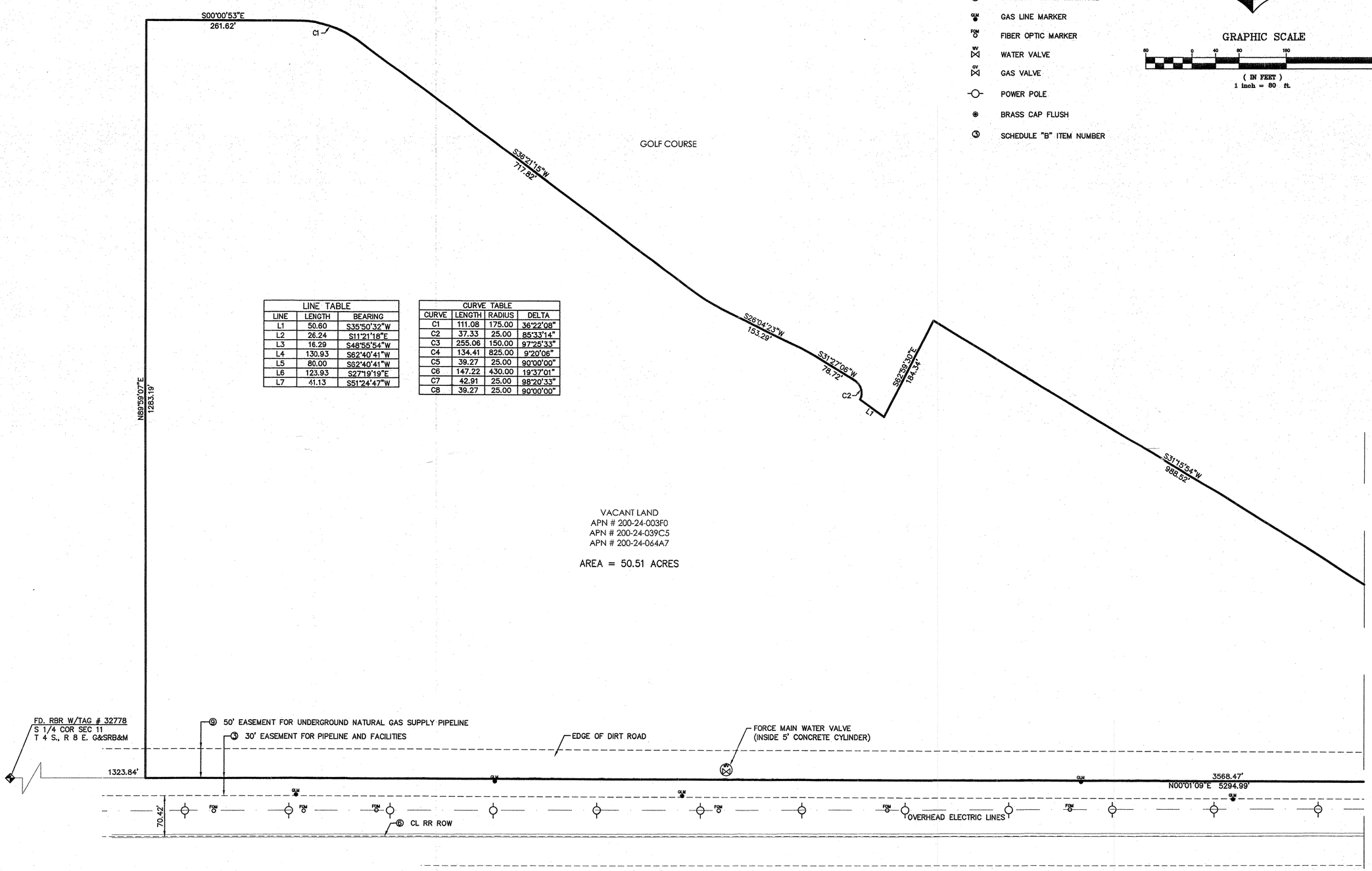
LEGEND

- MONUMENT AS NOTED
- SANITARY SEWER MANHOLE
- GAS LINE MARKER
- FIBER OPTIC MARKER
- WATER VALVE
- GAS VALVE
- POWER POLE
- BRASS CAP FLUSH
- SCHEDULE "B" ITEM NUMBER

GRAPHIC SCALE

80 0 40 80 160 320

(IN FEET)
1 inch = 80 ft.



LINE TABLE		
LINE	LENGTH	BEARING
L1	50.60	S35°50'32"W
L2	26.24	S11°21'18"E
L3	16.29	S48°55'54"W
L4	130.93	S62°40'41"W
L5	80.00	S62°40'41"W
L6	123.93	S27°19'19"E
L7	41.13	S51°24'47"W

CURVE TABLE			
CURVE	LENGTH	RADIUS	DELTA
C1	111.08	175.00	36°22'08"
C2	37.33	25.00	85°33'14"
C3	255.06	150.00	97°25'33"
C4	134.41	825.00	9°20'06"
C5	39.27	25.00	90°00'00"
C6	147.22	430.00	19°37'01"
C7	42.91	25.00	98°20'33"
C8	39.27	25.00	90°00'00"

REVISIONS

No.	Date	CHKD	APPD

DESIGNED: —
DRAWN: MHR
CHECKED: MAR
JOB NO: 1950004
SCALE:
HORIZ: 1"=80'
DATE: 2-20-05

Carter :: Burgess
3003 North Central Ave., Suite 1700
Phoenix, Arizona 85012
(602) 263-5309 Fax (602) 263-8373

PROJECT: MAGIC RANCH – PARCEL F

DESCRIPTION: ALTA/ACSM LAND TITLE SURVEY

SHEET 2

2 OF 3

GRAPHIC SCALE

80 0 40 80 160 320

(IN FEET)
1 inch = 80 ft.

LEGEND

- MONUMENT AS NOTED
- SANITARY SEWER MANHOLE
- GAS LINE MARKER
- FIBER OPTIC MARKER
- WATER VALVE
- GAS VALVE
- POWER POLE
- BRASS CAP FLUSH
- SCHEDULE "B" ITEM NUMBER

LINE TABLE		
LINE	LENGTH	BEARING
L1	50.60	S35°50'32"W
L2	26.24	S11°21'18"E
L3	16.29	S48°55'54"W
L4	130.93	S62°40'41"W
L5	80.00	S62°40'41"W
L6	123.93	S27°19'19"E
L7	41.13	S51°24'47"W

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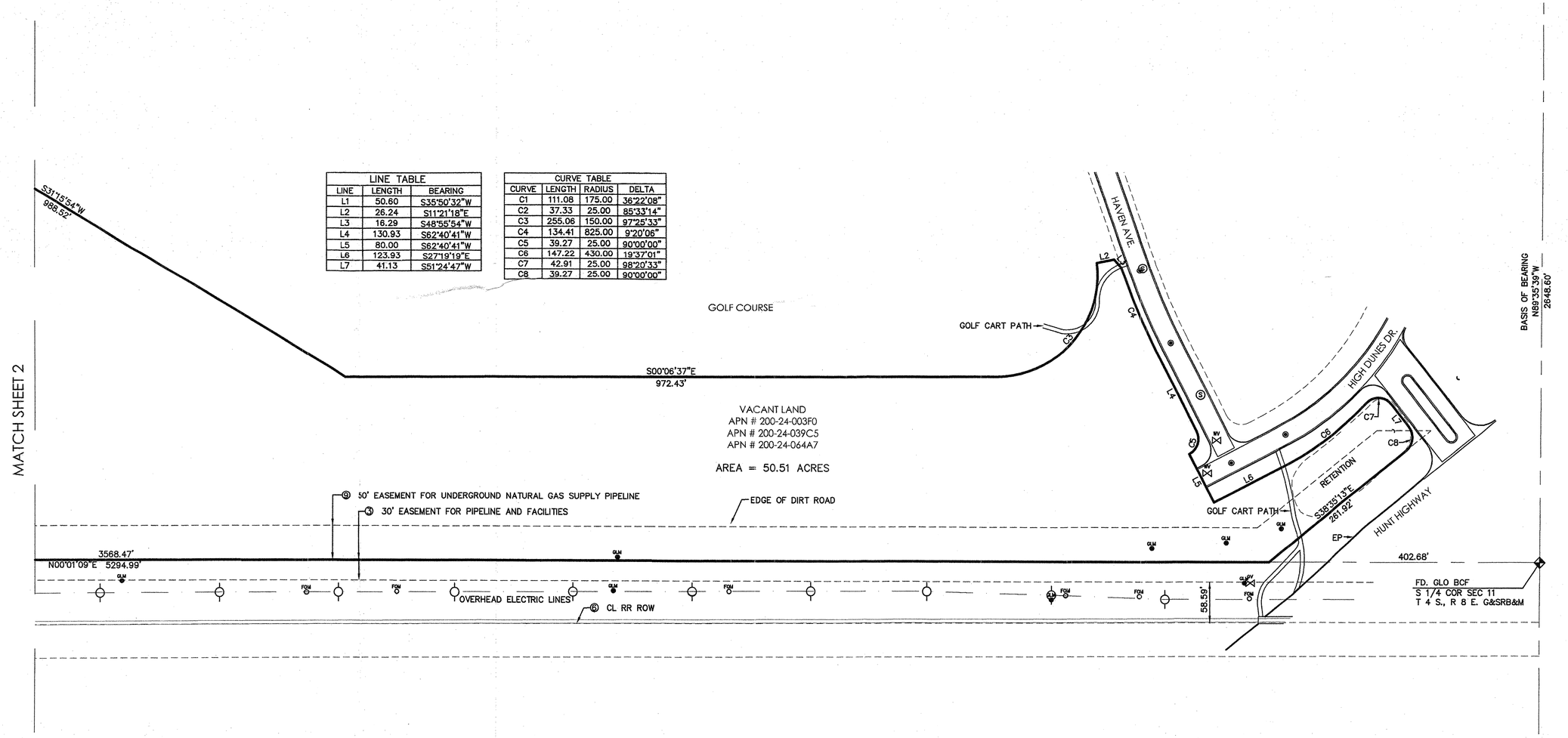

REVISIONS			
No.	Date	CHKD	APPD

DESIGNED: ___
DRAWN: MHR
CHECKED: MAR
JOB NO: 195004
SCALE:
HORIZ: 1"=80'
DATE 9-30-05

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Phoenix, Arizona 85012
(602) 263-5309 Fax (602) 263-8373

PROJECT: MAGIC RANCH – PARCEL F

DESCRIPTION: ALTA/ACSM LAND TITLE SURVEY

SHEET 3 OF 3